

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 9, 2018

Honorable Ronald W. Hansen
Judge of the Superior Court
County of Merced
2260 N Street
Merced, CA 95340

Re: Santiago Velasco, Juan Carlos
CDC No.: V88605
Case No.: 28804
Date of Sentence: June 17, 2005

Dear Honorable Ronald W. Hansen:

The purpose of this letter is to provide the court with authority to resentence Juan Carlos Santiago Velasco pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Santiago Velasco was sentenced in 2005, and was convicted of section 245, subdivision (A)(1), Assault By Means Of Force Likely Produce GBI. The trial court sentenced inmate Santiago Velasco on June 17, 2005. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Santiago Velasco's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Santiago Velasco's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Felony Information

cc: Honorable Donald J. Proietti, Merced County Presiding Judge
Merced District Attorney
Public Defender

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM
(Not to be used for multiple count convictions or for 1/3 consecutive sentences)

CL
8-4-05
V88605

CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: MERCED			FILED 6/27/05 MERCED SUPERIOR COURT JUDY R. EVANS By _____ Deputy		
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: JUAN CARLOS SANTIAGO VELASCO AKA: Juan Carlos Velasco CII#: A23753438 BOOKING #: _____		DOB: 09-09-85 ☐ NOT PRESENT	CASE NUMBER 28804		
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		☐ AMENDED ABSTRACT			
DATE OF HEARING 06-17-05	DEPT. NO. 2	JUDGE RONALD W. HANSEN			
CLERK JUDY EVANS	REPORTER JENNIFER HICKS	PROBATION NO. OR PROBATION OFFICER NONE			
COUNSEL FOR PEOPLE DAVID ELGIN		COUNSEL FOR DEFENDANT SEAN HOWARD ☒ APPTD.			

1. Defendant was convicted of the commission of the following felony:

CNT.	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY	TERM (L, M, U)	TIME IMPOSED
2	PC	245(A)(1)	ASSAULT BY MEANS OF FORCE LIKELY PRODUCE GBI	2003	04-22-05	X	U	4 0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

CNT.	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
2	12022.7(A)PC	3	186.22(B)(1)(C)PC	10					13 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL

4. ☐ Defendant was sentenced pursuant to PC 667 (b)-(i) or PC 1170.12 (two-strikes).

5. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

Restitution Fine(s): **\$1,000** per PC 1202.4(b) forthwith per PC 2085.5; **\$1,000** per PC 1202.45 suspended unless parole is revoked.

Restitution per PC 1202.4(f): ☐ \$____ / ☒ Amount to be determined to ☒ victim(s)* ☐ Restitution Fund
(*List victim name(s) if known and amount breakdown in item 7 below.)

Fine(s): \$____ per PC 1202.5. \$____ per VC 23550 or ____ days ☐ county jail ☐ prison in lieu of fine ☐ CC ☐ CS

Lab Fee: \$____ per HS 11372.5(a) for counts ____ ☐ Drug Program Fee of \$150 per HS 11372.7(a).

6. TESTING: a. ☐ AIDS pursuant to PC 1202.1 b. ☒ DNA pursuant to PC 296 c. ☐ other (specify):

7. Other orders (specify): **DEFENDANT TO REGISTER PURSUANT 11590 H&S.**
*** RICHARD ASHLOCK**

8. TOTAL TIME IMPOSED EXCLUDING COUNTY JAIL TERM: **17 0**

9. ☐ This sentence is to run concurrent with (specify):

10. Execution of sentence imposed

- a. ☒ at initial sentencing hearing. d. ☐ at resentencing per recall of commitment. (PC 1170(d).)
b. ☐ at resentencing per decision on appeal. e. ☐ other (specify):
c. ☐ after revocation of probation.

11. DATE SENTENCE PRONOUNCED **06-17-05** CREDIT FOR TIME SPENT IN CUSTODY **656** INCLUDING: ACTUAL LOCAL TIME **571** LOCAL CONDUCT CREDITS **85** ☐ 4019 ☐ 2933.1 TIME SERVED IN STATE INSTITUTION: DMH CDC CRC

12. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections.
☐ other (specify):

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE _____ DATE **06-27-05**

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.